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التحديات والاستراتيجيات وتقنيات المواجهة

Part Three

Comparing the Compatibility of Vietnam's Response Mechanisms to Transnational Crime With Current International Standards

D. Chu Van Dung
Major General
Vice President, People's Police Academy
Ministry of Public Security, Vietnam
chuvandungt02@gmail.com

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ABSTRACT

Transnational crime has become increasingly complex, technology-driven, and globally interconnected, posing significant challenges to national criminal justice systems and international governance mechanisms. In response, the international community has developed a broad range of legal, institutional, and operational standards aimed at strengthening collective efforts against transnational criminal activities. This study examines the compatibility of Vietnam's response mechanisms to transnational crime with contemporary international standards.

Drawing on established distinctions between normative, institutional, and operational dimensions in governance and implementation assessment, this study adapts and operationalizes these dimensions into a Three-Layer Compatibility Framework specifically for assessing national responses to transnational crime. The framework translates the three dimensions into 26 indicators covering legal alignment, institutional capacity, and implementation effectiveness. Using comparative legal analysis, normative analysis, and policy-oriented document analysis, the study applies these indicators to Vietnam's response mechanisms on the basis of publicly available legal, governmental, and authoritative international sources.

The findings reveal an uneven pattern of compatibility across the three dimensions. Vietnam demonstrates comparatively stronger alignment in established legal frameworks and formal institutional arrangements, while a number of indicators remain only partially compatible, particularly where effective implementation depends on inter-agency coordination, financial intelligence, international cooperation in practice, digital investigative capacity, electronic evidence, virtual assets, and rapidly evolving technology-enabled crime. This variation demonstrates that formal legal alignment does not necessarily translate into equivalent institutional or operational effectiveness.

The study argues that compatibility should be understood as a dynamic and multidimensional process rather than a static condition. Future reforms should therefore move beyond legal harmonization alone and adopt a broader approach integrating legal modernization, institutional strengthening, technological innovation, operational effectiveness, and international cooperation. By adapting established analytical dimensions into a structured 26-indicator assessment model and applying them systematically to the Vietnamese context, the study contributes methodologically to the literature on transnational crime governance. Its contribution lies not in introducing the normative, institutional, and operational dimensions themselves, but in integrating and operationalizing them for a multidimensional assessment of national response mechanisms and in linking identified compatibility gaps to corresponding policy priorities.

Keywords: *Transnational crime; compatibility assessment; international standards; comparative legal studies; criminal justice; international cooperation; Vietnam.*

1. INTRODUCTION

Transnational crime has become one of the most significant challenges to global governance, national security, and the rule of law in the twenty-first century. Globalization, digital transformation, international trade, migration, and financial integration have created unprecedented opportunities for economic development while simultaneously enabling criminal networks to expand across national borders. Contemporary transnational crime therefore extends far beyond traditional offences such as drug trafficking, human trafficking, and smuggling to include cyber-enabled fraud, money laundering, illicit financial flows, corruption, online exploitation, and the misuse of digital technologies.

According to the United Nations Office on Drugs and Crime (UNODC), transnational organized crime continues to generate enormous illicit profits and undermines economic stability, public security, state institutions, and sustainable development worldwide. Criminal organizations increasingly exploit encrypted communications, virtual assets, digital payment systems, and online platforms to evade law enforcement, making effective international cooperation more important than ever.

In response to these challenges, the international community has developed an increasingly comprehensive framework of legal and institutional standards. Major international instruments, including the United Nations Convention against Transnational Organized Crime (UNTOC), the United Nations Convention against Corruption (UNCAC), the Financial Action Task Force (FATF) Recommendations, and the recently adopted United Nations Convention against Cybercrime, establish common principles governing criminalization, international cooperation, mutual legal assistance, asset recovery, anti-money laundering, cybercrime investigations, and cross-border criminal justice cooperation.

As an active participant in international legal cooperation, Vietnam has undertaken substantial reforms to strengthen its response mechanisms against transnational crime. Over the past two decades, the country has progressively modernized its criminal legislation, criminal procedure, anti-money laundering framework, cybersecurity regulations, and international cooperation mechanisms. These reforms demonstrate Vietnam's commitment to implementing international obligations while safeguarding national sovereignty, public security, and the rule of law.

Despite these developments, an important research question remains regarding the extent to which Vietnam's response mechanisms are compatible with current international standards. Existing studies have focused primarily on legal harmonization and treaty implementation, while relatively limited attention has been devoted to institutional capacity and operational effectiveness. Yet contemporary transnational crime increasingly requires not only compatible legal frameworks but also effective governance structures and operational readiness capable of responding to rapidly evolving criminal threats.

Against this background, this study examines the compatibility of Vietnam's response mechanisms to transnational crime with current international standards. Specifically, it addresses three questions: (1) What are the principal international standards governing contemporary responses to transnational crime? (2) To what extent are Vietnam's legal, institutional, and operational response mechanisms compatible with these standards? (3) What gaps remain, and what policy priorities should guide future reforms

To answer these questions, the study adapts and operationalizes a three-dimensional analytical approach comprising normative compatibility, institutional compatibility, and operational compatibility. These dimensions are not presented as conceptually new; comparable distinctions between legal or normative requirements, institutional capacity, and implementation effectiveness are well established in governance and implementation literature and are reflected, in different forms, in international assessment methodologies. The present study brings these dimensions together for the specific purpose of assessing national response mechanisms to

transnational crime and operationalizes them through a set of indicators.

Accordingly, the contribution of this study lies not in proposing the normative, institutional, and operational dimensions as conceptually new categories, but in their systematic integration and operationalization for the specific assessment of national responses to transnational crime. Building on established distinctions in governance, implementation, and international assessment literature, the study translates these three dimensions into a structured set of 26 indicators covering legal alignment, institutional implementation capacity, and operational effectiveness.

This approach differs from existing sector-specific assessment mechanisms in its analytical purpose and scope. For example, the FATF methodology distinguishes technical compliance from effectiveness primarily within the AML/CFT *(Anti-Money Laundering and Counter-Terrorist Financing)* framework, whereas the present study adapts a multidimensional structure to the broader governance of transnational crime, incorporating criminal justice cooperation, institutional coordination, digital investigation, electronic evidence, financial enforcement, and cross-border operational capacity. The methodological contribution therefore lies in integrating these established dimensions within a single analytical framework and applying them systematically to the Vietnamese context.

2. LITERATURE REVIEW

2.1. International perspectives on transnational crime and global governance

Transnational crime has become a major challenge to global governance, national security, and the rule of law. Globalization, digital transformation, international trade, and cross-border mobility have enabled criminal networks to expand beyond national jurisdictions and exploit differences in legal and institutional systems. Consequently, transnational crime is increasingly recognized as a multidimensional threat affecting economic development, public security, and international cooperation.

Unlike traditional criminal groups, contemporary transnational criminal organizations operate through flexible and technology-driven networks capable of rapidly adapting to law enforcement strategies and regulatory changes. This evolution has significantly increased the complexity of criminal investigations, international cooperation, and cross-border enforcement.

To address these challenges, the international community has established a comprehensive framework of legal and policy instruments. The United Nations Convention against Transnational Organized Crime (UNTOC) remains the principal international instrument governing criminalization, mutual legal assistance, extradition, and international cooperation. Complementing UNTOC, the United Nations Convention against Corruption (UNCAC) strengthens global standards on corruption prevention, international cooperation, and asset recovery, while the Financial Action Task Force (FATF) Recommendations provide the principal international benchmark for anti-money laundering and combating illicit financial flows. More recently, emerging international standards on cybercrime and electronic evidence have further expanded the global governance framework for responding to technology-enabled transnational crime.

2.2. Existing studies on compatibility and international cooperation

For analytical purposes, the literature relevant to this study can be organized into three broad strands: legal and normative alignment; institutional capacity and implementation; and operational effectiveness.

The first strand concerns legal harmonization and transnational criminal law. Albanese (2014) and Shelley (2014, 2018) demonstrate that contemporary organized and transnational criminal activities increasingly operate through cross-border networks, illicit markets, corruption linkages, and technology-enabled economic activities, thereby challenging territorially bounded criminal justice systems. From a legal perspective, Boister (2018) emphasizes the importance of transnational criminal law in facilitating common legal responses to offences

whose conduct, consequences, or enforcement requirements extend across national jurisdictions. UNODC implementation guidance further highlights criminalization, jurisdiction, extradition, mutual legal assistance, confiscation, and related mechanisms as essential components of effective implementation of UNTOC. Studies on asset recovery, including Brun et al. (2020), similarly demonstrate that effective cross-border cooperation depends upon compatible substantive and procedural legal frameworks. Collectively, this strand establishes legal alignment as an important foundation for international criminal justice cooperation.

The second strand focuses on institutional capacity, governance, and implementation. Implementation scholarship demonstrates that the existence of formal legal rules does not necessarily ensure corresponding outcomes in practice. Pressman and Wildavsky (1984) emphasize the importance of institutional relationships, administrative capacity, and coordination among implementing actors, while Sabatier (1986) highlights the role of implementation structures and interactions among institutions. Comparable distinctions are reflected in contemporary international assessment methodologies. The FATF methodology, for example, distinguishes the assessment of technical compliance from the assessment of effectiveness, thereby recognizing that the existence of laws and regulatory arrangements must be considered separately from the extent to which intended outcomes are achieved in practice. This strand therefore directs attention to institutional mandates, inter-agency coordination, information sharing, specialized capacity, accountability, and implementation resources.

The third strand addresses operational effectiveness and the changing nature of transnational crime. Shelley (2018) emphasizes the adaptive and technologically enabled character of contemporary illicit markets. International research and policy assessments have likewise identified increasing operational challenges involving cybercrime investigations, electronic evidence, encrypted communications, digital platforms, virtual assets, and cross-border access to data (CTED, 2022; United Nations Economic and Social Council, 2018). From this perspective, operational effectiveness depends not only on adequate legal authority and institutional arrangements but also on technological capability, investigative expertise, timely information exchange, and the capacity to cooperate rapidly across jurisdictions.

Taken together, these three strands provide important but often separately developed perspectives on transnational crime governance. Within Southeast Asia, and particularly in studies concerning Vietnam, legal alignment, institutional capacity, and operational effectiveness have frequently been examined within specific fields such as anti-money laundering, trafficking in persons, cybercrime, or international law-enforcement cooperation. Comparatively less attention has been devoted to systematically integrating these three dimensions within a single indicator-based framework for assessing a national response to transnational crime. This specific gap provides the analytical basis for the framework operationalized in the present study.

2.3. Research gap and analytical direction

Despite considerable scholarly attention to transnational crime and international cooperation, several important gaps remain.

First, most studies assess compatibility primarily through legal compliance, assuming that formal legal convergence is sufficient to ensure effective implementation. However, compatible legislation does not necessarily translate into institutional effectiveness or operational readiness.

Second, research addressing institutional and operational dimensions remains fragmented across specific fields such as anti-money laundering, cybercrime, or international law enforcement cooperation. Consequently, relatively little attention has been devoted to developing an integrated framework capable of assessing compatibility across multiple dimensions simultaneously.

Third, rapid technological change has widened

the gap between legal frameworks and practical enforcement capacity. Emerging challenges involving electronic evidence, encrypted communications, virtual assets, and cross-border digital investigations require analytical approaches that extend beyond conventional legal harmonization.

These gaps should not be understood as indicating that normative, institutional, or operational dimensions are absent from existing scholarship. On the contrary, comparable distinctions are well established in governance, implementation, and international assessment literature. The more specific gap addressed by this study concerns their systematic integration and operationalization for evaluating a national response to transnational crime, particularly in the Vietnamese context.

Accordingly, this study adapts these established dimensions into a Three-Layer Compatibility Framework and operationalizes them through 26 indicators. The framework is intended to provide a structured basis for examining whether international standards are reflected not only in domestic legal rules, but also in institutional arrangements and practical implementation. The following section sets out the methodology through which these indicators are applied to Vietnam.

3. METHODOLOGY

3.1. Research design

This study adopts a qualitative research design grounded in comparative legal analysis, normative analysis, and policy-oriented document analysis. The primary objective is to assess the degree of compatibility between Vietnam's response mechanisms to transnational crime and contemporary international standards without relying on confidential operational data or non-public law enforcement information.

Given the legal, institutional, and policy-oriented nature of the research question, a qualitative approach is considered most appropriate for examining the relationship between international standards and domestic implementation mechanisms. The methodology enables a systematic assessment of both formal legal arrangements and broader governance structures relevant to transnational crime control.

3.2. Data sources

The study relies exclusively on publicly available sources. These include international conventions, policy frameworks, official legal documents, government reports, publications issued by international organizations, and academic literature relevant to transnational crime and international cooperation.

Key international reference instruments include the United Nations Convention against Transnational Organized Crime (UNTOC), the United Nations Convention against Corruption (UNCAC), the Financial Action Task Force (FATF) Recommendations, relevant United Nations Office on Drugs and Crime (UNODC) guidance documents, and emerging international standards relating to cybercrime and electronic evidence. Domestic sources include Vietnamese legislation, policy documents, official reports, and publicly accessible governmental publications concerning crime prevention, criminal justice, and international cooperation.

3.3. Methods of analysis

First, the study employs comparative legal analysis to examine the relationship between international legal standards and Vietnam's domestic legal framework. Particular attention is given to criminalization, jurisdiction, mutual legal assistance, extradition, asset recovery, anti-money laundering measures, cybercrime provisions, and mechanisms governing international cooperation.

Second, the study utilizes normative analysis to evaluate the extent to which Vietnam's legal provisions reflect the substantive obligations and principles embedded within international standards. This approach focuses on identifying areas of convergence, divergence, and potential legal gaps affecting compatibility.

Third, the study applies policy-oriented document analysis to examine institutional arrangements

and implementation mechanisms. This method facilitates the assessment of organizational structures, coordination mechanisms, policy objectives, and practical governance arrangements relevant to the implementation of international obligations.

The findings generated through these methods are subsequently examined using a dedicated analytical framework designed to assess compatibility between Vietnam's response mechanisms and contemporary international standards. A detailed explanation of this framework is presented in the following section.

3.4. Indicator construction and qualitative assessment protocol

The 26 indicators employed in the Three-Layer Compatibility Framework were derived through a structured synthesis of the principal international legal instruments, implementation methodologies, institutional guidance, and relevant academic literature examined in this study. Rather than treating the indicators as an independent quantitative index, the study uses them as qualitative analytical benchmarks for systematically comparing Vietnam's response mechanisms with contemporary international standards.

Indicator construction followed three analytical steps. First, recurring requirements and implementation concerns were identified from major international reference instruments, including UNTOC, UNCAC, FATF Recommendations and methodology, UNODC guidance, and relevant international standards concerning cybercrime and electronic evidence. Second, these requirements were classified according to their primary analytical function: normative compatibility, referring to legal alignment; institutional compatibility, referring to implementation structures and institutional capacity; and operational compatibility, referring to practical implementation and enforcement effectiveness. Third, overlapping requirements were consolidated into 26 indicators comprising eight normative, eight institutional, and ten operational indicators.

Each indicator was assessed qualitatively against the publicly available evidence identified through comparative legal analysis, normative analysis, and policy-oriented document analysis. To enhance analytical transparency, the assessment distinguishes among three descriptive categories: strong alignment, where the available evidence demonstrates substantial consistency with the relevant international benchmark; partial alignment, where relevant legal or institutional mechanisms exist but identifiable implementation gaps, limitations, or emerging challenges remain; and insufficient evidence for a strong-alignment finding, where publicly available evidence does not provide an adequate basis for concluding substantial compatibility.

These categories are intended as analytical descriptors rather than numerical scores or official compliance ratings. They should not be interpreted as substituting for formal evaluations conducted by international organizations or competent national authorities. In particular, assessments referring to FATF-related areas draw upon relevant international standards and publicly available evaluation materials but do not reproduce or replace FATF/APG compliance ratings.

The indicator-level findings provide the evidentiary basis for the comparative assessment presented in Section 5. Accordingly, the Compatibility Assessment Matrix in Figure 2 is used primarily as a conceptual synthesis of the interaction among normative, institutional, and operational dimensions rather than as a quantitatively calculated country ranking.

4. ANALYTICAL FRAMEWORK FOR ASSESSING COMPATIBILITY

4.1. Conceptualizing compatibility in transnational crime governance

The title of this study emphasizes the comparative assessment of Vietnam's response mechanisms to transnational crime against current international standards. Accordingly, compatibility constitutes the central analytical perspective through which this comparison is conducted. Rather than viewing compatibility solely as legal harmonization, this study conceptualizes it as a multidimensional process that evaluates how effectively national response

mechanisms translate international standards into legal, institutional, and operational outcomes.

Traditional comparative legal studies primarily assess compatibility by examining whether domestic legislation incorporates obligations established in international conventions. Although such approaches contribute to understanding legal harmonization, they often assume that formal legal alignment automatically results in effective implementation. In the context of increasingly sophisticated transnational crime, legal convergence alone is insufficient to ensure an effective national response.

The distinction among normative, institutional, and operational dimensions is not presented in this study as a conceptually novel tripartite classification. Comparable distinctions between legal or normative requirements, institutional capacity, and implementation effectiveness are widely used in governance and implementation scholarship and are reflected in international assessment approaches, including the FATF methodology and UNODC implementation and needs-assessment tools.

The specific contribution of the present framework lies instead in its adaptation and operationalization for the assessment of national responses to transnational crime. Whereas existing international methodologies are generally designed for particular treaty regimes, policy fields, or sector-specific assessment purposes, the framework employed here integrates legal alignment, institutional implementation capacity, and operational effectiveness into a single analytical structure tailored to transnational crime governance. These dimensions are subsequently translated into 26 indicators derived from the principal international standards and implementation concerns examined in this study.

Accordingly, the framework evaluates Vietnam's response mechanism through three interconnected dimensions:

- Normative Compatibility - the alignment of domestic legislation with internationally recognized legal standards;

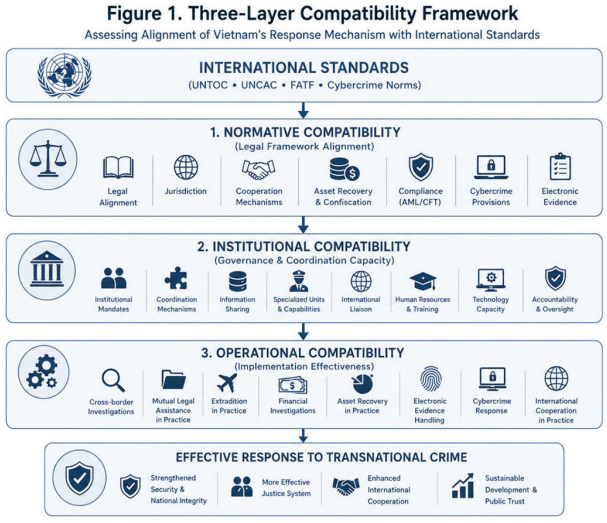
- Institutional Compatibility - the capacity of governance structures, coordination mechanisms, and responsible institutions to implement international obligations effectively;

- Operational Compatibility - the effectiveness with which legal and institutional arrangements are translated into practical law enforcement responses and international cooperation.

These three dimensions are mutually reinforcing. Normative compatibility establishes the legal foundation, institutional compatibility provides implementation capacity, and operational compatibility determines whether legal and institutional arrangements ultimately produce effective responses in practice.

Accordingly, the study evaluates the overall compatibility of Vietnam's response mechanisms by examining the interaction among these three dimensions rather than assessing legal conformity alone. The analytical framework illustrated in Figure 1 and the assessment indicators presented in Tables 1-3 constitute the principal analytical foundation for the comparative assessment undertaken in Section 5.

Figure 1. Three-Layer compatibility framework for comparing Vietnam's response mechanisms with current International standards



Source: *Developed by the author based on authoritative academic and policy sources.*

4.2. Normative Compatibility

Normative compatibility constitutes the first analytical dimension of the Three-Layer Compatibility Framework proposed in this study. It refers to the extent to which Vietnam's legal framework aligns with internationally recognized legal obligations, principles, and standards governing the prevention, investigation, prosecution, adjudication, and international cooperation in combating transnational crime. Within the context of this study, normative compatibility serves as the legal foundation upon which institutional arrangements and operational responses are subsequently developed and evaluated.

Unlike conventional assessments that primarily examine whether a State has ratified major international conventions, normative compatibility is understood as a broader process of legal integration. It encompasses not only the formal incorporation of treaty obligations into domestic legislation but also the establishment of coherent legal mechanisms capable of supporting effective implementation. Accordingly, legal compatibility is assessed in terms of both substantive criminal law and procedural criminal justice provisions that facilitate international cooperation, rather than by legislative convergence alone.

In the context of Vietnam's response mechanism, normative compatibility is evaluated against internationally recognized benchmarks derived from the principal global legal instruments governing transnational crime. These include the United Nations Convention against Transnational Organized Crime (UNTOC), the United Nations Convention against Corruption (UNCAC), the Financial Action Task Force (FATF) Recommendations, together with emerging international norms concerning cybercrime, electronic evidence, digital investigations, and cross-border law enforcement cooperation[(1)].[1] Collectively, these instruments establish the contemporary legal standards against which national response mechanisms may be systematically assessed.

From this perspective, normative compatibility reflects the ability of domestic legislation to provide an adequate legal basis for implementing international obligations across the entire criminal justice process. The assessment therefore extends beyond the criminalization of offences to encompass jurisdictional rules, procedural safeguards, mutual legal assistance, extradition, confiscation and asset recovery, anti-money laundering and counter-terrorist financing (AML/CFT), cybercrime legislation, and legal provisions governing the collection, preservation, admissibility, and cross-border transfer of electronic evidence.[(2)] Together, these elements determine whether the legal system is capable of supporting effective domestic enforcement while simultaneously facilitating international judicial and law enforcement cooperation.

Based on this analytical approach, the present study evaluates normative compatibility through eight core indicators representing the principal legal dimensions of contemporary transnational crime governance. These indicators provide a structured framework for comparing Vietnam's legal response mechanism with current international standards and establish the legal benchmark for the subsequent assessment of institutional and operational compatibility.[(3)]

(1) United Nations Convention against Transnational Organized Crime, arts. 5-8, 12-13 and 15-20; United Nations Convention against Corruption, Chapters III-V; Financial Action Task Force, The FATF Recommendations, particularly Recommendations 3-4, 30-32, 36-40; United Nations General Assembly Resolution 79/243, United Nations Convention against Cybercrime.

(2) In Vietnam, many of these obligations have been incorporated into the Penal Code 2015 (amended in 2017), the Criminal Procedure Code 2015, the Law on Cybersecurity 2018, the Law on Anti-Money Laundering 2022, and relevant legislation governing international judicial cooperation.

(3) Vietnam's legal framework for international cooperation in criminal matters is based on the Law on Mutual Legal Assistance 2007, applicable bilateral and multilateral treaties, relevant international conventions and, where permitted, the principle of reciprocity. See also UNTOC, arts. 1618; UNCAC, arts. 44-46.

Table 1. Indicators for Assessing the Normative compatibility of Vietnam's response Mechanisms

Normative Indicator	Assessment Question	Primary International Reference
Criminalization	Are major forms of transnational crime criminalized in accordance with international standards?	UNTOC (Arts. 5–8)
Jurisdiction	Does domestic legislation establish adequate jurisdiction over transnational offences?	UNTOC (Art. 15)
Mutual Legal Assistance	Are mutual legal assistance mechanisms legally established and operationally supported?	UNTOC (Arts. 18–20)
Extradition	Do legal provisions facilitate effective extradition cooperation?	UNTOC (Art. 16)
Asset Recovery	Are confiscation and asset recovery mechanisms consistent with international standards?	UNCAC (Chapter V)
AML/CFT	Does the legal framework reflect the FATF Recommendations on anti-money laundering and counter-terrorist financing?	FATF Recommendations
Cybercrime	Does domestic legislation adequately regulate technology-enabled crime?	UN Cybercrime Convention; UNODC Guidance
Electronic Evidence	Are procedures available for obtaining, preserving, sharing, and admitting electronic evidence?	UNODC Digital Evidence Guidelines; Emerging International Standards

Source: *Developed by the author based on UNTOC, UNCAC, FATF Recommendations, UNODC guidance documents, and contemporary literature on transnational crime governance.*

4.3. Institutional Compatibility

Institutional compatibility constitutes the second analytical dimension of the Three-Layer Compatibility Framework. While normative compatibility establishes the legal foundation of a national response mechanism, institutional compatibility evaluates whether the responsible organizations possess the governance structures, mandates, coordination mechanisms, and implementation capacity necessary to translate legal obligations into effective practice. It therefore serves as the critical bridge between legal design and operational implementation.

In the field of transnational crime governance, legal convergence alone cannot guarantee effective enforcement. International standards increasingly require competent institutions capable of coordinating across sectors, sharing information, mobilizing specialized expertise, and cooperating efficiently with foreign counterparts. Consequently, institutional compatibility is understood as the extent to which institutional arrangements support the practical implementation of international obligations within an integrated criminal justice system. Institutional compatibility therefore assesses the capacity of governance structures to support effective responses to transnational crime.(1)

The assessment considers both domestic governance capacity and international cooperation structures. At the domestic level, particular attention is given to institutional mandates, inter-agency coordination, information-sharing

(1) Vietnam's institutional framework involves multiple competent authorities responsible for law enforcement, prosecution, adjudication, customs administration and financial intelligence. See APG, Vietnam .Mutual Evaluation Report (2022), pp. 34-40, 52-58

mechanisms, specialized investigative units, human resource development, technological capability, and accountability arrangements. Inter-agency coordination is a critical indicator of institutional compatibility.(1)

At the international level, the analysis examines liaison mechanisms and cooperative structures that facilitate coordination with foreign law enforcement agencies, judicial authorities, international organizations, and multilateral networks involved in combating transnational crime. International institutional connectivity forms another important dimension of assessment.(2) Vietnam participates in various international law-enforcement cooperation mechanisms, including INTERPOL, ASEANAPOL, and bilateral and multilateral frameworks for combating transnational crime.

Based on this framework, institutional compatibility is assessed through eight core indicators that collectively measure the organizational readiness of Vietnam's response mechanism to implement current international standards. These indicators complement the legal assessment presented in the previous section and provide the institutional benchmark for evaluating operational compatibility in the subsequent analysis.

Table 2. Indicators for Assessing the Institutional compatibility of Vietnam's response mechanisms

Institutional indicator	Assessment focus	Institutional objective
Institutional Mandates	Clarity of legal authority and institutional responsibilities	Ensure clear allocation of functions
Coordination Mechanisms	Effectiveness of inter-agency cooperation	Promote integrated governance
Information Sharing	Intelligence and data-sharing arrangements	Facilitate timely decision-making
Specialized Units	Availability of dedicated operational capacities	Strengthen professional expertise
International Liaison	Cooperation with foreign counterparts and international organizations	Enhance international collaboration
Human Resources	Professional qualifications, training, and specialized expertise	Improve institutional competence
Technology Capacity	Digital infrastructure and technological support	Strengthen investigative capability
Accountability	Oversight, transparency, and governance mechanisms	Ensure institutional integrity

Source: Developed by the author based on UNTOC, UNCAC, FATF Recommendations, UNODC institutional capacity-building guidance, and contemporary literature on transnational crime governance.

4.4. Operational Compatibility

Operational compatibility constitutes the third and final analytical dimension of the Three-Layer Compatibility Framework. It evaluates the extent to which legal frameworks and institutional arrangements are effectively translated into operational responses to transnational crime under real-world conditions. Operational compatibility evaluates the practical effectiveness of implementation.(3)

(1) Inter-agency coordination in crime prevention and control in Vietnam is supported through the Government Steering Committee for Crime Prevention and Control (Steering Committee 138/CP), with the Ministry of Public Security serving as the standing agency. Coordination, information-sharing and reporting mechanisms are governed by Decision No. 165/QD-BCD138/CP dated 10 March 2020, Decision No. 165/QD-BCD138/CP, arts. 1-3, 7-10.

(2) International institutional connectivity may be reflected through participation in INTERPOL, ASEANAPOL, UNODC-supported capacity-building initiatives, and bilateral or multilateral law-enforcement cooperation frameworks. See UNTOC, Art. 27; UNODC (2016), Implementation of the United Nations Convention against Transnational Organized Crime: Needs Assessment Tools, pp. 51-55.

(3) UNODC emphasizes that effective implementation of the United

This dimension is particularly important because contemporary transnational crime increasingly exploits technological innovation, jurisdictional fragmentation, financial globalization, encrypted communication systems, virtual assets, and cross-border digital infrastructures. As a result, operational effectiveness depends not only upon legal authority and institutional mandates but also upon the ability of agencies to cooperate effectively, exchange information, conduct investigations, recover criminal assets, and respond rapidly to emerging threats.

Operational compatibility therefore represents the ultimate test of implementation. Even where strong legal alignment and institutional capacity exist, operational deficiencies may still arise due to technological limitations, procedural delays, resource constraints, evidentiary challenges, or obstacles to international cooperation.

Cross-border investigations represent a key indicator within this dimension.(1) At the same time, the growing digitalization of criminal activities has significantly altered the operational environment of transnational crime governance. Electronic evidence and cybercrime responses have become increasingly important.(2)

Based on this framework, operational compatibility is assessed through ten core indicators that collectively measure implementation effectiveness across cross-border investigations, international cooperation, financial enforcement, digital capability, and institutional adaptability. These indicators provide the operational benchmark for comparing Vietnam's response mechanisms with current international standards and complete the Three-Layer Compatibility Framework developed in this study.

Table 3. Indicators for Assessing operational compatibility

Operational indicator	Assessment focus	Operational objective
Cross-border Investigations	Ability to conduct joint or coordinated investigations	Improve cross-border enforcement
MLA in Practice	Timeliness and effectiveness of MLA procedures	Facilitate international judicial cooperation
Extradition Cooperation	Practical implementation of extradition requests	Strengthen offender transfer mechanisms
Financial Investigations	Capacity to trace illicit financial flows	Disrupt criminal finances
Asset Recovery	Effectiveness of confiscation and recovery	Deprive criminal organizations of illicit assets
Electronic Evidence	Collection and admissibility of digital evidence	Strengthen digital investigations
Cybercrime Response	Capacity to investigate technology-enabled crime	Improve cyber resilience
Information Exchange	Practical intelligence-sharing mechanisms	Enhance operational coordination
Digital Forensics	Technical capacity to analyse electronic evidence	Support technology-driven investigations
Emerging Threats	Adaptability to new criminal methods	Maintain operational readiness

Source: *Developed by the author based on UNTOC, UNCAC, FATF, and contemporary transnational crime governance literature.*

Nations Convention against Transnational Organized Crime depends not only on the existence of appropriate legal provisions but also on institutional capacity, coordination mechanisms and practical implementation by competent authorities. See UNODC (2016), Implementation of the United Nations Convention against Transnational Organized Crime: Needs Assessment Tools, pp. 7-9, 19-21.

(1) UNODC identifies drug trafficking, trafficking in persons, migrant smuggling, cybercrime, money laundering, firearms trafficking and other illicit cross-border activities among the principal threats posed by transnational organized crime. See UNODC, The Globalization of Crime: A Transnational Organized Crime Threat Assessment (2010), pp. iii-v, 1-3.

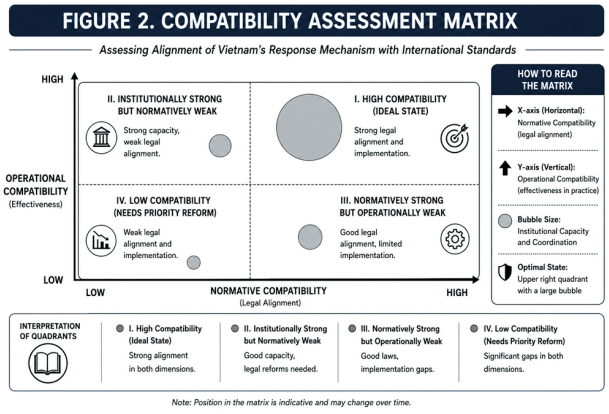
(2) CTED (2022), The State of International Cooperation for Lawful Access to Digital Evidence: Research Perspectives, pp. 5–8, 18–23; and UN Economic and Social Council, International Cooperation in Addressing Cybercrime, UN Doc. E/CN.15/2018/6, paras. 21-29.

4.5. Integrated compatibility assessment

A key contribution of this study is the integration of normative, institutional, and operational compatibility into a unified analytical framework for comparing Vietnam's response mechanisms to transnational crime with current international standards. Rather than evaluating legal, institutional, and operational dimensions independently, the framework examines how these three dimensions interact to determine the overall compatibility and effectiveness of a national response mechanism. The Compatibility Assessment Matrix integrates normative compatibility, institutional compatibility, and operational compatibility into a unified analytical framework.(1)

The relationships among the three dimensions are illustrated through the Compatibility Assessment Matrix (Figure 2). Within the matrix, normative compatibility is represented along the horizontal axis, operational compatibility along the vertical axis, while institutional compatibility is reflected through the relative size of the assessment points. This visualization enables the systematic identification of areas of convergence, implementation gaps, institutional strengths, and future reform priorities.

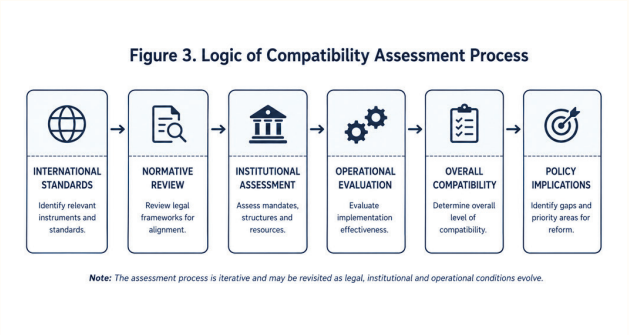
Figure 2. Conceptual Compatibility Assessment Matrix



Source: Developed by the author based on authoritative academic and policy sources.

The Compatibility Assessment Matrix distinguishes four broad patterns of compatibility, ranging from low compatibility to high overall compatibility. Rather than merely illustrating levels of legal convergence, the matrix highlights how normative, institutional, and operational dimensions interact to shape the overall effectiveness of a national response mechanism. Accordingly, it provides a structured analytical tool for identifying implementation gaps, institutional strengths, and priority areas for future legal reform, capacity-building, and operational enhancement.

Figure 3. Logic of Compatibility Assessment process



***Source:** Developed by the author based on authoritative academic and policy sources.*

Figure 3 further illustrates the logical sequence through which the comparative assessment proposed in this study is conducted. The assessment begins with internationally recognized legal standards, which provide the normative benchmarks for evaluating Vietnam's response mechanisms. These standards are subsequently examined through three interconnected dimensions - normative compatibility, institutional compatibility, and operational compatibility - before being synthesized into an overall compatibility assessment. The analytical process concludes by identifying policy implications and strategic recommendations aimed at strengthening Vietnam's alignment with current international standards. Accordingly, Figure 3 complements the Compatibility Assessment Matrix by illustrating the methodological

(1) The framework used in this study does not claim conceptual novelty in the distinction among normative, institutional, and operational dimensions. Rather, it adapts and integrates established distinctions between legal requirements, institutional capacity, and implementation effectiveness for the specific purpose of assessing national responses to transnational crime. See FATF, Methodology for Assessing Technical Compliance with the FATF Recommendations and the Effectiveness of AML/CFT Systems (2023), pp. 7–15; UNODC, Implementation of the United Nations Convention against Transnational Organized Crime: Needs Assessment Tools (2016), pp. 7–9, 19–21.

logic that links the analytical framework developed in Section 4 with the empirical assessment presented in Section 5.

5. COMPARATIVE ASSESSMENT

The comparative assessment of Vietnam's response mechanisms against current international standards leads to the following findings:

5.1. Normative compatibility between Vietnam's response mechanisms and International standards

5.1.1. Areas of strong legal alignment

The analysis indicates that Vietnam has achieved a relatively high degree of normative compatibility with major international standards governing transnational crime control. Since becoming a party to key international instruments, including the United Nations Convention against Transnational Organized Crime (UNTOC) and the United Nations Convention against Corruption (UNCAC), Vietnam has progressively incorporated international obligations into its domestic legal framework.(1)

Substantial convergence can be observed in several areas.

First, Vietnam's criminal legislation has established a comprehensive framework for criminalizing major forms of transnational crime. The Penal Code contains provisions addressing organized criminal activities, corruption-related offences, money laundering, cybercrime, trafficking offences, terrorism-related conduct, and a wide range of offences commonly associated with transnational criminal networks.

Second, Vietnam has developed legal mechanisms supporting international judicial cooperation. Provisions concerning extradition, mutual legal assistance, transfer of criminal proceedings, and cooperation in criminal matters are incorporated into domestic legislation and supplemented by bilateral and multilateral agreements.

Third, anti-money laundering regulations have undergone significant development. Legislative reforms have increasingly reflected FATF recommendations concerning customer due diligence, suspicious transaction reporting, beneficial ownership transparency, and financial intelligence functions.

Fourth, the legal framework governing electronic evidence and cybercrime has gradually expanded in response to digital transformation and emerging technological threats.

Collectively, these developments demonstrate substantial efforts to align domestic legislation with internationally recognized legal standards.

5.1.2. Remaining legal gaps and emerging challenges

Despite significant progress, the analysis also reveals several areas where normative compatibility remains incomplete.

One challenge concerns the rapid evolution of technology-enabled crime. Emerging issues such as encrypted communications, virtual assets, decentralized financial systems, artificial intelligence-enabled criminal activities, and cross-border cloud-based evidence frequently evolve faster than legislative reforms.(2)

Another challenge relates to the fragmentation of international legal standards in certain emerging areas. Unlike traditional transnational crimes, cybercrime governance remains characterized by multiple overlapping instruments and evolving norms, creating difficulties for national legal systems attempting to maintain full alignment.

Furthermore, practical implementation of mutual legal assistance and cross-border evidence collection may still encounter legal and procedural complexities, particularly where differences exist among national legal systems regarding privacy protection, data localization, and admissibility standards.

(1) United Nations Office on Drugs and Crime, The Globalization of Crime: A Transnational Organized Crime Threat Assessment (United Nations, 2010), pp. ii-iii, 1-3. The report analyses the transnational character and interconnection of major illicit markets, including trafficking in drugs, persons, firearms, environmental resources, counterfeit goods and other criminal commodities.

(2) United Nations Office on Drugs and Crime, The Globalization of Crime: A Transnational Organized Crime Threat Assessment (United Nations, 2010), pp. 1-3, 25-27. UNODC explains that illicit markets operate across borders and exploit differences in demand, supply, regulation and enforcement among jurisdictions.

Accordingly, although Vietnam demonstrates a generally high level of normative compatibility, continued legislative adaptation will be necessary to address emerging forms of transnational crime and evolving international standards.

5.2. Institutional compatibility between Vietnam's response mechanisms and International standards

5.2.1. Institutional strengths

The institutional assessment indicates that Vietnam possesses a relatively comprehensive governance structure for addressing transnational crime.

A notable strength lies in the existence of specialized agencies responsible for different dimensions of transnational crime control. Law enforcement bodies, prosecutorial authorities, judicial institutions, customs agencies, border management agencies, and financial intelligence functions collectively contribute to a multi-agency response system.

Vietnam has also strengthened inter-agency coordination through national strategies, specialized steering mechanisms, and operational cooperation frameworks. Such arrangements facilitate information sharing and coordinated responses to complex criminal activities that often transcend institutional boundaries.

At the international level, Vietnam actively participates in regional and global cooperation mechanisms, including ASEAN cooperation frameworks, ASEANAPOL, INTERPOL, UNODC-supported initiatives, and numerous bilateral cooperation arrangements[1]. These mechanisms enhance institutional connectivity and facilitate cooperation with foreign counterparts.

The increasing integration of digital technologies into governance processes has further strengthened institutional capacity in several areas, particularly information management, intelligence analysis, and administrative coordination.

5.2.2. Institutional constraints

Nevertheless, several institutional challenges remain.

The complexity of transnational crime requires extensive coordination among agencies possessing different mandates, priorities, and operational cultures. Coordination mechanisms may therefore encounter challenges relating to information sharing, jurisdictional overlap, and procedural synchronization.

Resource disparities across agencies and local jurisdictions may also affect implementation capacity. While major national-level institutions often possess specialized expertise and technological resources, capacity levels may vary considerably across sectors and geographic regions.[2]

Moreover, rapidly evolving criminal methodologies require continuous institutional adaptation. Maintaining expertise in cybercrime investigations, financial intelligence, digital forensics, virtual assets, and emerging technologies presents ongoing challenges for many jurisdictions worldwide, including Vietnam.

Overall, the analysis suggests that institutional compatibility is generally strong but requires continued investment in coordination, specialization, and technological modernization.

5.3. Operational compatibility between Vietnam's response mechanisms and International standards

5.3.1. Operational achievements

The operational assessment reveals substantial progress in translating legal and institutional arrangements into practical enforcement activities.

(1) United Nations Convention against Transnational Organized Crime, adopted 15 November 2000, arts. 5-8, 12-13 and 16-20; United Nations Convention against Corruption, adopted 31 October 2003, Chapters III-V; Financial Action Task Force, International Standards on Combating Money Laundering and the Financing of Terrorism and Proliferation: The FATF Recommendations; United Nations General Assembly Resolution 79/243, United Nations Convention against Cybercrime, adopted 24 December 2024.

(2) Asia/Pacific Group on Money Laundering, Anti-Money Laundering and Counter-Terrorist Financing Measures: Vietnam-Mutual Evaluation Report (APG, 2022), pp. 112-114, paras. 460-464. The report finds that Vietnam has a relatively sound legal basis for providing a wide range of mutual legal assistance and extradition, based on the Criminal Procedure Code 2015, the Law on Mutual Legal Assistance 2007, relevant treaties, international conventions and the principle of reciprocity.

Vietnam has demonstrated increasing effectiveness in cross-border cooperation, information exchange, joint investigations, anti-money laundering efforts, and asset recovery activities. Participation in international networks has enhanced access to intelligence, operational coordination, and investigative support.(1)

The adoption of digital technologies has also contributed to improved operational effectiveness. Technological tools increasingly support intelligence collection, data analysis, financial investigations, and cybercrime responses.

Furthermore, practical cooperation with foreign partners has strengthened the capacity to address transnational criminal networks whose activities span multiple jurisdictions.

These developments indicate a growing ability to operationalize international standards in real-world enforcement contexts.

5.3.2. Persistent operational challenges

However, operational compatibility remains the most challenging dimension of the framework.

Contemporary transnational criminal organizations frequently exploit technological asymmetries, encrypted communication platforms, anonymous financial instruments, virtual assets, and jurisdictional fragmentation. Such developments create enforcement challenges that extend beyond traditional investigative methods.

Cross-border evidence collection remains particularly complex. Delays associated with mutual legal assistance requests, differing evidentiary standards, privacy regulations, and data access requirements can affect investigative efficiency.(2)

Similarly, asset tracing and recovery operations often require extensive international cooperation involving multiple jurisdictions and legal systems.

The increasing use of artificial intelligence, digital platforms, and decentralized technologies by criminal actors further complicates operational responses.

Consequently, while Vietnam has achieved considerable operational progress, continued modernization of investigative techniques, digital forensic capabilities, technological infrastructure, and international cooperation mechanisms will remain essential.

5.3.3. Indicator-level synthesis of compatibility findings

To enhance the transparency of the comparative assessment, the findings from Sections 5.1-5.3 are synthesized at the indicator level in Table 4. Consistent with the qualitative assessment protocol described in Section 3.4, each indicator is characterized as demonstrating strong alignment, partial alignment, or insufficient evidence for a strong-alignment finding on the basis of publicly available legal, institutional, policy, and international assessment materials.

The classifications presented in Table 4 are analytical findings of this study rather than official compliance ratings. They are intended to identify patterns of relative strength and remaining implementation gaps across the three dimensions and to provide a transparent evidentiary bridge between the analytical framework and the policy recommendations developed in Section 6.

(1) Asia/Pacific Group on Money Laundering, Anti-Money Laundering and Counter-Terrorist Financing Measures: Vietnam-Mutual Evaluation Report (APG, 2022), pp. 118-120, paras. 487 and 496-499. The report records that Vietnamese law-enforcement authorities are authorized to cooperate through bilateral and multilateral agreements, international conventions, reciprocity and membership in organizations including INTERPOL, ASEANAPOL and the World Customs Organization.

(2) Asia/Pacific Group on Money Laundering, Anti-Money Laundering and Counter-Terrorist Financing Measures: Vietnam-Mutual Evaluation Report (APG, 2022), pp. 5–6, paras. 1(b)-(c). The assessment finds good policy-level coordination through national coordination mechanisms but considers operational-level coordination less effective; it also identifies limitations in the development, exchange and use of financial intelligence.

Table 4. Indicator-Level Qualitative Assessment of Vietnam's Response Mechanisms

Dimension	Indicator	Proposed assessment	Main analytical basis
Normative	Criminalization	**Strong alignment**	Major forms of transnational crime are addressed within the domestic criminal-law framework.
	Jurisdiction	**Strong alignment**	Domestic legislation establishes jurisdictional bases applicable to relevant criminal offences.
	Mutual Legal Assistance	**Strong alignment**	Legal mechanisms for MLA and international judicial cooperation are established.
	Extradition	**Strong alignment**	Domestic legal provisions and international cooperation arrangements provide a basis for extradition.
	Asset Recovery	**Partial alignment**	Legal mechanisms exist, while effective cross-border tracing, confiscation and recovery remain implementation-intensive.
	AML/CFT	**Partial alignment**	The legal framework has developed substantially, although continuing adaptation and effective implementation remain necessary.
	Cybercrime	**Partial alignment**	Relevant provisions exist, but rapidly evolving technology-enabled crime creates continuing legal adaptation needs.
	Electronic Evidence	**Partial alignment**	A legal basis exists, while cross-border access, preservation and evidentiary differences continue to present challenges.
Institutional	Institutional Mandates	**Strong alignment**	Specialized institutions and defined mandates form a relatively comprehensive governance structure.
	Coordination Mechanisms	**Partial alignment**	Coordination structures exist, but complex multi-agency cases may create synchronization and overlap challenges.
	Information Sharing	**Partial alignment**	Mechanisms are available, although timeliness and interoperability remain important implementation concerns.
	Specialized Units	**Strong alignment**	Specialized law-enforcement and related institutional capacities are established in major relevant fields.
	International Liaison	**Strong alignment**	Vietnam participates actively in bilateral, regional and international cooperation mechanisms.

Dimension	Indicator	Proposed assessment	Main analytical basis
	Human Resources	**Partial alignment**	Professional capacity exists, but emerging technological and multidisciplinary fields require continuous specialization.
	Technology Capacity	**Partial alignment**	Digital capability is developing, while capacity may vary across agencies, sectors and locations.
	Accountability	**Partial alignment**	Governance and oversight arrangements exist, but the public-source methodology does not support an unqualified strong-alignment finding across all relevant institutions.
Operational	Cross-border Investigations	**Partial alignment**	International operational cooperation has expanded, but cross-jurisdictional complexity remains.
	MLA in Practice	**Partial alignment**	Operational mechanisms exist, while procedural differences and delays can affect timeliness.
	Extradition Cooperation	**Partial alignment**	Cooperation is operationalized but remains dependent on different legal systems and international procedures.
	Financial Investigations	**Partial alignment**	Capacity has developed, while increasingly complex illicit financial flows and virtual assets create new challenges.
	Asset Recovery	**Partial alignment**	Practical recovery frequently requires complex multi-jurisdictional cooperation.
	Electronic Evidence	**Partial alignment**	Digital evidence is increasingly important, but collection and cross-border access remain operationally challenging.
	Cybercrime Response	**Partial alignment**	Capacity is strengthening, while rapidly changing technologies continuously reshape operational requirements.
	Information Exchange	**Partial alignment**	International networks facilitate exchange, although speed and interoperability remain important.
	Digital Forensics	**Partial alignment**	Technical capability is developing but requires continuing investment and specialized expertise.
	Emerging Threats	**Partial alignment**	Institutional adaptation is ongoing in response to AI, virtual assets, encryption and other emerging technologies.

Source: *Developed by the author based on the study's qualitative assessment and publicly available national and international sources.*

5.4. Overall assessment through the compatibility framework

Drawing together the indicator-level findings, the assessment reveals a differentiated pattern of compatibility across the three dimensions.

Normative compatibility demonstrates the strongest pattern of alignment. Vietnam has established substantial legal foundations across criminalization, jurisdiction, international judicial cooperation, and other major areas relevant to transnational crime. Nevertheless, partial-alignment findings remain in areas particularly affected by technological change and complex implementation requirements, including cybercrime, electronic evidence, AML/CFT, and cross-border asset recovery.

Institutional compatibility also demonstrates significant strengths, particularly in relation to institutional mandates, specialized structures, and international liaison. However, the assessment identifies continuing implementation needs concerning inter-agency coordination, information sharing, human-resource specialization, technological capacity, and the ability to maintain consistently effective institutional arrangements across different operational contexts.

Operational compatibility presents the greatest concentration of partial-alignment findings. This does not indicate an absence of operational capacity; rather, it reflects the particular difficulty of achieving consistently effective implementation in areas requiring rapid cross-border cooperation, digital and financial investigation, electronic evidence, advanced forensic capability, and adaptation to emerging technologies.

Overall, the findings suggest that Vietnam has established substantial foundations for compatibility with contemporary international standards, while the remaining gaps are increasingly concentrated at the interface between formal arrangements and practical implementation. Accordingly, future reform priorities should focus not only on maintaining legal alignment but also on strengthening institutional adaptability, technological capability, operational effectiveness, and the speed and quality of international cooperation.

The Compatibility Assessment Matrix should therefore be interpreted as a conceptual synthesis of these differentiated findings rather than as a quantitatively calculated ranking of Vietnam.

6. POLICY IMPLICATIONS AND RECOMMENDATIONS

The findings of this study indicate that Vietnam has established substantial foundations for compatibility with contemporary international standards governing transnational crime control, while the indicator-level assessment identifies a number of remaining gaps concentrated particularly in institutional implementation and operational effectiveness. The recommendations presented below are therefore derived directly from the findings summarized in Table 4 and are organized according to the principal areas in which partial alignment or continuing adaptation needs were identified.

Rather than proposing broad reforms independently of the assessment, each recommendation addresses specific legal, institutional, or operational gaps revealed through the Three-Layer Compatibility Framework. This approach strengthens the link between the comparative findings and the policy implications of the study.

6.1. Modernizing the legal framework for emerging transnational crime threats

Policy Implication: The indicator-level assessment identifies partial alignment in several normative areas particularly affected by technological and financial change, including cybercrime, electronic evidence, AML/CFT-related emerging risks, and cross-border asset recovery. Although Vietnam has established substantial legal foundations in these areas, the pace of technological development increasingly exceeds the speed at which traditional legal frameworks can adapt. Emerging threats associated with virtual assets, cryptocurrency-related offences, artificial intelligence-assisted criminal activities, encrypted communications, darknet marketplaces, and cross-border electronic evidence therefore require increasingly adaptive legal responses.

Recommendation: Future legislative reforms should prioritize emerging forms of technology-enabled and financially facilitated transnational crime and establish more adaptive regulatory mechanisms capable of responding to rapidly evolving criminal methodologies. Particular attention should be given to legal frameworks governing electronic evidence, virtual assets, cross-border data access, artificial intelligence applications, asset recovery, and international cybercrime cooperation. Policymakers should also consider periodic legal review mechanisms to ensure that domestic legislation remains responsive to evolving

international standards and emerging criminal risks. These measures directly address the partial-alignment findings relating to cybercrime, electronic evidence, emerging financial risks, and asset recovery identified in Table 4.

6.2. Strengthening whole-of-government coordination and institutional integration

Policy Implication: The institutional assessment identifies partial alignment particularly in coordination mechanisms and information sharing. Although Vietnam has established multi-agency governance structures, increasingly complex transnational crime requires timely coordination among law enforcement agencies, prosecutors, courts, customs authorities, border-management agencies, financial intelligence functions, cybersecurity institutions, and regulatory bodies.

As criminal organizations operate across multiple domains simultaneously, fragmented institutional responses may reduce the effectiveness of otherwise compatible legal frameworks.

Recommendation: Vietnam should continue strengthening whole-of-government coordination mechanisms by promoting integrated governance models, standardized cooperation procedures, and interoperable information-sharing systems. Future reforms should encourage greater institutional integration through joint operational platforms, coordinated risk assessments, shared databases, and multidisciplinary task forces capable of responding to complex transnational criminal activities. Such measures would enhance institutional compatibility and improve the overall resilience of the national response mechanism.

6.3. Enhancing digital investigation and electronic evidence capacity

Policy Implication: The operational assessment identifies persistent partial alignment in electronic evidence, cybercrime response, digital forensics, and the capacity to adapt to emerging technology-enabled threats. These findings indicate that future operational compatibility will increasingly depend upon the ability of criminal justice institutions to operate effectively within complex digital environments. Contemporary transnational crime relies heavily on online platforms, encrypted communication systems, digital payment mechanisms, and sophisticated technological infrastructures.[1] As a result, traditional investigative approaches alone are unlikely to provide sustainable responses to future threats.

Recommendation: Priority should be given to strengthening digital investigative capacity through investment in digital forensic laboratories, cyber-investigation technologies, blockchain analytics, artificial intelligence-assisted investigative tools, and advanced electronic evidence management systems. In parallel, specialized training programs should be expanded for investigators, prosecutors, judges, and technical experts responsible for handling technology-enabled criminal cases. Strengthening digital capability will significantly enhance operational compatibility and improve the effectiveness of responses to contemporary transnational crime.

6.4. Expanding international cooperation beyond traditional legal assistance mechanisms

Policy implication: The indicator-level assessment identifies continuing operational challenges in cross-border investigations, mutual legal assistance in practice, extradition cooperation, information exchange, and asset recovery. These findings suggest that the effectiveness of international cooperation increasingly depends not only on the existence of formal legal mechanisms but also on their speed, flexibility, and practical interoperability[2]. Consequently, compatibility with international standards now requires broader and more dynamic forms of cooperation.

Recommendation: Vietnam should continue expanding operational cooperation through joint investigations, real-time intelligence sharing, regional task forces, direct law enforcement communication channels, and partnerships with international organizations. Greater participation in regional and global cybercrime initiatives, financial intelligence networks, and international capacity-building programs should also be encouraged. Such measures would strengthen operational compatibility and improve the ability of domestic institutions to respond to increasingly borderless criminal activities. These recommendations

(1) Contemporary transnational crime increasingly exploits encrypted communications, digital platforms, online services and emerging technologies, creating significant challenges for criminal investigations and evidence collection. See UNODC, Electronic Evidence and Cybercrime Investigations (2022), pp. 5-8; CTED, The State of International Cooperation for Lawful Access to Digital Data (2022), pp. 18-23.

(2) International organizations have recognized that traditional mutual legal assistance procedures often face difficulties in responding to time-sensitive requests involving digital evidence and cross-border cyber investigations. See CTED (2022), pp. 5-8; UNODC, International Cooperation in Addressing Cybercrime (2018), paras. 21-29.

address the operational gaps identified in cross-border investigation, MLA in practice, information exchange, extradition cooperation, and asset recovery.

6.5. Developing future-oriented human resources for transnational crime governance

Policy implication: The institutional assessment identifies continuing adaptation needs in human resources and technological capacity, while the operational assessment highlights the growing importance of specialized expertise in financial investigations, cybercrime, electronic evidence, digital forensics, and emerging technologies. As transnational crime becomes increasingly sophisticated, future practitioners will require expertise that extends beyond traditional criminal investigation techniques. The growing convergence of law, technology, finance, cybersecurity, and international cooperation necessitates a multidisciplinary approach to professional development.(1)

Recommendation: Vietnam should adopt a future-oriented capacity-building strategy emphasizing interdisciplinary education and specialized professional training. Training programs should incorporate emerging fields such as cybercrime investigation, digital forensics, financial intelligence, artificial intelligence, data analytics, and international criminal cooperation. Particular attention should be devoted to cultivating a new generation of specialists capable of operating effectively within technologically complex and internationally interconnected environments. This recommendation directly addresses the human-resource and technological-capacity gaps identified across the institutional and operational dimensions.

6.6. Establishing a dynamic compatibility monitoring and evaluation mechanism

Policy implication: A central conclusion of this study is that compatibility should be viewed as a dynamic process rather than a fixed outcome. International standards continue to evolve, criminal methodologies constantly adapt, and technological innovations create new governance challenges. Consequently, maintaining compatibility requires systematic monitoring and continuous evaluation rather than periodic reform efforts alone.

Recommendation: Vietnam may consider developing a periodic compatibility review mechanism informed by the Three-Layer Compatibility Framework and other relevant national and international assessment methodologies. Such a mechanism could periodically review developments across normative, institutional, and operational dimensions, identify emerging implementation gaps, and support evidence-based policy prioritization.

Rather than functioning as a formal compliance-rating system, the framework could serve as an analytical support tool for monitoring changes in international standards, technological developments, and implementation challenges. Future empirical research and methodological validation would be necessary before the framework could be used for quantitative or institutionalized national assessment.

Concluding policy implication

Taken together, the findings of this study suggest that future reforms should move beyond a narrow focus on legal harmonization and embrace a broader compatibility-oriented approach integrating legal modernization, institutional strengthening, technological innovation, operational effectiveness, and international cooperation.

The Three-Layer Compatibility Framework demonstrates that successful responses to transnational crime depend upon the interaction of normative, institutional, and operational factors. Strengthening compatibility across all three dimensions will not only improve Vietnam's alignment with contemporary international standards but also enhance the overall effectiveness, adaptability, and sustainability of its response mechanism in an increasingly complex global security environment.

7. CONCLUSION

Transnational crime continues to evolve in scale, complexity, and technological sophistication, creating significant challenges for national criminal justice systems and international governance. Against this background, this study examined the compatibility of Vietnam's response mechanisms to transnational crime with contemporary international standards through an integrated assessment of legal alignment, institutional implementation capacity, and operational effectiveness.

To undertake this assessment, the study adapted and operationalized three established analytical dimensions—normative, institutional, and operational compatibility—

(1) Effective responses to transnational crime increasingly require multidisciplinary expertise combining legal knowledge, technological capabilities, financial intelligence and international cooperation skills. See FATF, Methodology for Assessing Technical Compliance and Effectiveness (2023), pp. 7-15; UNODC, Needs Assessment Tools (2016), pp. 19-21.

within a Three-Layer Compatibility Framework comprising 26 qualitative indicators. The contribution of this approach lies not in presenting these dimensions as conceptually new, but in integrating them within a single analytical structure tailored to transnational crime governance and applying them systematically to the Vietnamese context.

The indicator-level assessment reveals a differentiated pattern across the three dimensions. Normative compatibility demonstrates the strongest overall pattern of alignment, reflecting substantial legal foundations in criminalization, jurisdiction, international judicial cooperation, and related areas. Nevertheless, continuing adaptation is required in fields particularly affected by technological and financial innovation, including cybercrime, electronic evidence, emerging financial risks, and cross-border asset recovery.

Institutional compatibility demonstrates significant strengths, particularly in institutional mandates, specialized structures, and international liaison. At the same time, continuing implementation needs remain in inter-agency coordination, information sharing, human-resource specialization, and technological capacity. These findings reinforce the broader implementation literature showing that formal legal alignment alone does not necessarily ensure equivalent institutional effectiveness.

Operational compatibility presents the greatest concentration of partial-alignment findings. Although Vietnam has made substantial progress in international cooperation and technology-assisted enforcement, cross-border investigations, mutual legal assistance in practice, financial investigations, electronic evidence, digital forensics, and rapidly emerging technologies continue to generate significant implementation challenges. These findings suggest that the principal future compatibility challenges increasingly arise at the interface between established legal and institutional arrangements and their practical implementation.

From a methodological perspective, the study contributes by demonstrating how established normative, institutional, and operational dimensions can be integrated and operationalized through an indicator-based qualitative assessment of national responses to transnational crime. The framework provides a structured means of linking international standards, domestic response mechanisms, identified implementation gaps, and corresponding policy priorities.

From a policy perspective, the findings indicate that future reform priorities should combine continued legal adaptation with stronger institutional coordination, technological capacity, specialized human resources, operational innovation, and faster international cooperation. Such measures are particularly important in areas where transnational criminal activities increasingly exploit digital technologies, virtual assets, cross-border data infrastructures, and differences among national legal and institutional systems.

Finally, the findings should be interpreted in light of the study's reliance on publicly available sources and its qualitative analytical design. The assessment does not constitute an official compliance rating or a quantitative ranking of Vietnam. Future research could build upon the present approach through empirical validation, comparative cross-country application, and the development of appropriately validated quantitative indicators where sufficiently comparable data are available.

REFERENCES

Albanese, J. S. (2014). *Organized crime in our times*. Routledge.

Asia/Pacific Group on Money Laundering. (2022). *Anti-money laundering and counter-terrorist financing measures: Vietnam mutual evaluation report*. APG.

Boister, N. (2018). *An introduction to transnational criminal law* (2nd ed.). Oxford University Press.

Brun, J.-P., Sotiropoulou, A., Gray, L., Scott, C., & Stephenson, K. M. (2020). *Asset recovery handbook: A guide for practitioners* (2nd ed.). World Bank. https://doi.org/10.1596/978-1-4648-1616-1

Collin, M. E. (2021). *Illicit financial flows: Concepts, measurement, and evidence*. World Bank Group.

Council of Europe. (2001). *Convention on cybercrime (ETS No. 185)*. Council of Europe.

Counter-Terrorism Committee Executive Directorate. (2022). *The state of international cooperation for lawful access to digital data: Research perspectives*. United Nations.

Financial Action Task Force. (2023). *Methodology for assessing technical compliance with the FATF recommendations and the effectiveness of AML/CFT systems*. FATF.

Financial Action Task Force. (2026). *International standards on combating money laundering and the financing of terrorism & proliferation: The FATF recommendations*. FATF.

Government of Viet Nam. (2022). *Decree No. 53/2022/*

ND-CP dated 15 August 2022 detailing a number of articles of the Law on Cybersecurity. Government Portal.

Hagan, F. E., & Daigle, L. E. (2018). *Introduction to criminology: Theories, methods, and criminal behavior* (10th ed.). SAGE Publications.

Naím, M. (2005). *Illicit: How smugglers, traffickers, and copycats are hijacking the global economy*. Doubleday.

National Assembly of Viet Nam. (2007). *Law on Mutual Legal Assistance No. 08/2007/QH12 dated 21 November 2007*. Government Portal.

National Assembly of Viet Nam. (2015a). *Criminal Code No. 100/2015/QH13 dated 27 November 2015*. Government Portal.

National Assembly of Viet Nam. (2015b). *Criminal Procedure Code No. 101/2015/QH13 dated 27 November 2015*. Government Portal.

National Assembly of Viet Nam. (2017). *Law No. 12/2017/QH14 dated 20 June 2017 amending and supplementing a number of articles of the Criminal Code No. 100/2015/QH13*. Government Portal.

National Assembly of Viet Nam. (2018). *Law on Cybersecurity No. 24/2018/QH14 dated 12 June 2018*. Government Portal.

National Assembly of Viet Nam. (2022). *Law on Anti-Money Laundering No. 14/2022/QH15 dated 15 November 2022*. Government Portal.

Pressman, J. L., & Wildavsky, A. (1984). *Implementation: How great expectations in Washington are dashed in Oakland* (3rd ed.). University of California Press.

Sabatier, P. A. (1986). Top-down and bottom-up approaches to implementation research: A critical analysis and suggested synthesis. *Journal of Public Policy, 6*(1), 21–48. https://doi.org/10.1017/S0143814X00003846

Shelley, L. I. (2014). *Dirty entanglements: Corruption, crime, and terrorism*. Cambridge University Press.

Shelley, L. I. (2018). *Dark commerce: How a new illicit economy is threatening our future*. Princeton University Press.

United Nations. (2000). *United Nations Convention against Transnational Organized Crime and the Protocols thereto*. United Nations.

United Nations. (2003). *United Nations Convention against Corruption*. United Nations.

United Nations Economic and Social Council. (2018). *International cooperation in addressing and countering cybercrime* (E/CN.15/2018/6). United Nations.

United Nations General Assembly. (2024). *United Nations Convention against Cybercrime: Strengthening international cooperation for combating certain crimes committed by means of information and communications technology systems and for the sharing of evidence in electronic form of serious crimes* (A/RES/79/243). United Nations.

United Nations Office on Drugs and Crime. (2010). *The globalization of crime: A transnational organized crime threat assessment*. United Nations.

United Nations Office on Drugs and Crime. (2012). *Digest of organized crime cases: A compilation of cases with commentaries and lessons learned*. United Nations.

United Nations Office on Drugs and Crime. (2012). *Manual on international cooperation for the purposes of confiscation of proceeds of crime*. United Nations.

United Nations Office on Drugs and Crime. (2012). *Manual on mutual legal assistance and extradition*. United Nations.

United Nations Office on Drugs and Crime. (2016). *Implementation of the United Nations Convention against Transnational Organized Crime: Needs assessment tools*. United Nations.

United Nations Office on Drugs and Crime. (2021). *Digest of cases of international cooperation in criminal matters involving the United Nations Convention against Transnational Organized Crime as a legal basis*. United Nations.

United Nations Office on Drugs and Crime. (2021). *Model legislative provisions against organized crime*. United Nations.

United Nations Office on Drugs and Crime. (2023). *Global report on trafficking in persons 2022*. United Nations.

United Nations Office on Drugs and Crime. (2023). *Toolkit on mainstreaming gender and human rights in the implementation of the United Nations Convention against Transnational Organized Crime*. United Nations.

United Nations Office on Drugs and Crime. (2024). *World drug report 2024*. United Nations.

Williams, P. (2012). Transnational organized crime. In P. D. Williams (Ed.), *Security studies: An introduction* (2nd ed., pp. 503–520). Routledge.